

M/S Chandan Sheetgrih Private Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 January 2023 · Writ-C No. 38674 of 2022 · WRIT - C No. 38674 of 2022 · **Writ disposed of with liberty to challenge the bill under Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill dated 21.4.2022 was disposed of with liberty to raise the dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the petitioner not disputing that a dispute as to bill accuracy is to be raised by that procedure.

FACTUAL SUMMARY

M/S Chandan Sheetgrih Private Ltd., carrying on business at Narkhi, Firozabad, petitioned the Allahabad High Court against an electricity bill dated 21 April 2022. The State and the electricity department were respondents. Counsel for the Electricity Department submitted that a dispute as to the accuracy of the bill had to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not dispute that position.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-alternate-remedy

HOLDING

A dispute as to the accuracy of an electricity bill is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A writ petition challenging such a bill is disposed of with liberty to the consumer to avail that procedure. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ challenging an electricity bill disposed of with liberty to raise the dispute under Clause 6.5, which the petitioner did not dispute as the proper remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Accuracy of the electricity bill dated 21.4.2022 left to the Clause 6.5 procedure rather than writ adjudication. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 21.4.2022

Writ disposed of with liberty to Clause 6.5; the bill was not examined on merits. ¶ 1